

Line 6

Case Name: *Argent Investments LLC v. Ye Rang Choi*
Case No.: 25CV468257

This is a motion to set aside entry of default, filed by cross-defendants Argent Investments, LLC (“Argent”) and Stanley Woo (together, “Cross-Defendants”) in connection with a cross-complaint filed by defendant and cross-complainant Ye Rang Choi dba Risewell Acupuncture (“Choi”). Because the motion is timely and sets forth a basis for mandatory relief under Code of Civil Procedure section 473, subdivision (b) (“section 473(b)”), the court grants the motion.

1. Background

Argent filed this case against Choi on June 16, 2025. Choi filed a cross-complaint against the Cross-Defendants on July 30, 2025. On September 25, 2025, Cross-Defendants attempted to submit a declaration with the court seeking an automatic extension to respond to the cross-complaint under Code of Civil Procedure sections 430.41 and 435.5, but they neglected to include the required first-appearance fee of \$435.00. The clerk’s office rejected Cross-Defendants’ filing, and on the very next court day, September 29, 2025 (September 26 was a state holiday), Choi filed a request for entry of default. Choi’s filing had errors, and so the clerk’s office rejected this filing, as well.

It appears that numerous additional attempts were then made by Choi to obtain defaults against the Cross-Defendants—on October 6, 2025 (twice), October 13, 2025, October 21, 2025, and October 22, 2025—with varying degrees of success. On October 13, 2025, Cross-Defendants again attempted to file a declaration for an automatic extension under Code of Civil Procedure sections 430.41 and 435.5. Although the clerk’s office accepted the filing, counsel “inadvertently” indicated on the declaration that he was filing it on behalf of Argent only and omitted any mention of cross-defendant Woo. (Memorandum of Points and Authorities in Support of Motion, p. 3:10.)

On November 4, 2025, Cross-Defendants filed the present motion to set aside defaults that were ultimately entered against both Cross-Defendants in the previous month. While this motion was pending, Choi sought and obtained a default judgment from the court on December 19, 2025 in the amount of \$1,080,022.51, against both Cross-Defendants.¹

2. The Law on Motions to Set Aside Defaults and Default Judgments

Under Code of Civil Procedure section 473(b), the court must vacate a default or default judgment when a defendant or cross-defendant’s motion for relief is timely and supported by a sworn attorney affidavit attesting to the attorney’s mistake, inadvertence, surprise, or excusable neglect that caused the default or default judgment to be entered. This includes errors made by the attorney’s staff. (See *Hu v. Fang* (2002) 104 Cal.App.4th 61, 64-65.)

¹ Under Evidence Code section 452, subdivision (d), the court takes judicial notice of the foregoing filings in this case. Everything else contained in both sides’ unnecessarily voluminous requests for judicial notice is unnecessary to the resolution of this motion. The requests are denied, except to the extent they encompass the documents mentioned above.

In addition, mandatory relief applies to both defaults entered by a clerk and default judgments entered by a judge. (See *Matera v. McLeod* (2006) 145 Cal.App.4th 44, 67 [defendants entitled to mandatory relief from default entered by clerk *and the resulting default judgment* signed by a judge].)

The provision of mandatory relief is in keeping with the strong public policy in California that favors a determination of actions on the merits rather than by default. (See *Rodriguez v. Brill* (2015) 234 Cal.App.4th 715, 725; see also *Fasuyi v. Permatex, Inc.* (2008) 167 Cal.App.4th 681, 685.)

3. Discussion

In this case, Cross-Defendants' counsel has submitted a sworn declaration attesting to mistakes made by his "office" in omitting a first-appearance fee on September 25, 2025 and in omitting any mention of Woo in the declaration filed on October 13, 2025. (See Declaration of Ron Assadi, ¶¶ 3 & 4.) Even though it is not a great look for counsel to blame others (somewhat vaguely) in his "office" for mistakes for which a licensed attorney must ultimately be responsible, the Assadi declaration is sufficient under *Hu v. Fang, supra*. Therefore, the court has no discretion here, and mandatory relief is warranted. The present motion was filed less than a month from entry of the defaults, and so it is timely under section 473(b).

Choi argues that because the motion was filed before entry of the default judgment on December 19, 2025, it is "procedurally outdated" and "does not properly notice relief" from the judgment. (Opposition, p. 11: 19-21.) This is incorrect. Because the motion seeks to set aside the entry of defaults against Cross-Defendants, and because the motion is meritorious, any resulting judgment that is based on those underlying defaults must also be set aside. (See *Matera v. McLeod, supra*.) A default judgment cannot stand without an underlying default in place.

It also exalts form over substance to make a defendant (or cross-defendant) re-notice a motion to set aside, simply because a plaintiff (or cross-complainant) was able to obtain a default judgment while the original motion was pending. Choi was on notice of Cross-Defendants' motion, and it is highly unseemly for a plaintiff to have forged ahead with a default judgment request when he knows that a motion to set aside is pending and the other side is trying to litigate the case on the merits. If Choi were an attorney, he could plausibly be accused of violating the bar association's Code of Professionalism, based on his persistent efforts to obtain defaults and a default judgment in this case without acknowledging Cross-Defendants' efforts to litigate this case and without adequately conferring with the other side. (See, e.g., Santa Clara County Bar Association Code of Professionalism, Section 16 ["A lawyer should not seek an opposing party's default to obtain a judgment or substantive order without giving that opposing party sufficient advance written warning to allow the opposing party to cure the default."].) As a self-represented litigant and non-attorney, he is fortunate that these rules do not apply to him.

Because the court concludes that Cross-Defendants are entitled to mandatory relief, the court refrains from addressing the parties' remaining arguments regarding the propriety of service and regarding the possibility of discretionary relief under section 473(b).

The motion to set aside is GRANTED. Any default or default judgment entered against Cross-Defendants is hereby VACATED.

IT IS SO ORDERED.